

No. 23-13396

**In the United States Court of Appeals
for the Eleventh Circuit**

AMERICAN SECURITIES ASSOCIATION;
CITADEL SECURITIES LLC, PETITIONERS

v.

U.S. SECURITIES AND EXCHANGE COMMISSION,
RESPONDENT

THE NASDAQ STOCK MARKET, LLC; NASDAQ BX, INC.;
NASDAQ GEMX, LLC; NASDAQ ISE, LLC;
NASDAQ MRX, LLC; ET AL., INTERVENORS

*ON PETITION FOR REVIEW OF AN ORDER
OF THE SECURITIES AND EXCHANGE COMMISSION (RELEASE NO. 34-98290)*

**MOTION FOR LEAVE TO FILE BRIEF OF AMICI CURIAE SECURITIES
INDUSTRY AND FINANCIAL MARKETS ASSOCIATION AND VIRTU
FINANCIAL, INC., IN SUPPORT OF PETITIONERS' OPPOSED TIME-
SENSITIVE MOTION FOR STAY AND INJUNCTIVE RELIEF**

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**No. 23-13396, American Securities Association v. U.S. Securities
and Exchange Commission**

**CERTIFICATE OF INTERESTED PERSONS
AND CORPORATE DISCLOSURE STATEMENT**

Pursuant to 11th Cir. R. 26.1-1, amici curiae Securities Industry and Financial Markets Association and Virtu Financial, Inc., provide the following list of interested persons:

- Alternative Investment Management Association, *Amicus Curiae*
- Altman, Jennifer G., *Counsel for Intervenors NYSE American, LLC; NYSE Arca, Inc.; NYSE Chicago, Inc.; NYSE National, Inc.; and New York Stock Exchange LLC*
- American Securities Association, *Petitioner*
- ArentFox Schiff, LLP, *Counsel for Intervenors Cboe BYX Exchange, Inc.; Cboe BZX Exchange, Inc.; Cboe C2 Exchange, Inc.; Cboe EDGA Exchange, Inc.; Cboe EDGX Exchange, Inc.; and Cboe Exchange, Inc.*
- Ashbrook Byrne Kresge LLC, *Counsel for Amici Curiae James Overdahl and S.P. Kothari*
- Ballard Spahr, LLP, *Counsel for Intervenors NASDAQ BX, Inc.; NASDAQ GEMX, LLC; NASDAQ ISE, LLC; NASDAQ MRX, LLC; NASDAQ PHLX, LLC; and NASDAQ Stock Market, LLC*
- Barbero, Megan, *Counsel for Respondent*
- Borse Dubai Limited, *Owner of More than 10% of Shares of Nasdaq, Inc.*

**No. 23-13396, American Securities Association v. U.S. Securities
and Exchange Commission**

- Boyle, Gregory M., *Counsel for Intervenor Consolidated Audit Trail, LLC*
- Box Exchange LLC, *Member and Participant of Intervenor Consolidated Audit Trail, LLC*
- Cboe BYX Exchange, Inc., *Intervenor*
- Cboe BZX Exchange, Inc., *Intervenor*
- Cboe C2 Exchange, Inc., *Intervenor*
- Cboe EDGA Exchange, Inc., *Intervenor*
- Cboe EDGX Exchange, Inc., *Intervenor*
- Cboe Exchange, Inc., *Intervenor*
- Cboe Global Markets, Inc. (BATS: CBOE), *Direct or Indirect Parent Company of Intervenors Cboe BYX Exchange, Inc.; Cboe BZX Exchange, Inc.; Cboe EDGA Exchange, Inc.; Cboe EDGX Exchange, Inc.; Cboe C2 Exchange, Inc.; and Cboe Exchange, Inc.*
- Citadel Securities GP LLC, *Parent Company of Petitioner Citadel Securities LLC*
- Citadel Securities LLC, *Petitioner*
- Committee on Capital Markets Regulation, *Amicus Curiae*
- Conley, Michael A., *Counsel for Respondent*
- Connolly, John Michael, *Counsel for Petitioner American Securities Association*

**No. 23-13396, American Securities Association v. U.S. Securities
and Exchange Commission**

- Consolidated Audit Trail, LLC, *Intervenor*
- Consovoy McCarthy, PLLC, *Counsel for Petitioner American Securities Association*
- Francisco, Noel John, *Counsel for Petitioner Citadel Securities LLC*
- Financial Industry Regulatory Authority, Inc., *Member and Participant of Intervenor Consolidated Audit Trail, LLC*
- Flowers, Benjamin M., *Counsel for Amici Curiae James Overdahl and S.P. Kothari*
- Gershengorn, Ian, *Counsel for Intervenor Consolidated Audit Trail, LLC*
- Greenwalt III, Paul, *Counsel for Intervenor Cboe BYX Exchange, Inc.; Cboe BZX Exchange, Inc.; Cboe C2 Exchange, Inc.; Cboe EDGA Exchange, Inc.; Cboe EDGX Exchange, Inc.; and Cboe Exchange, Inc.*
- Hardin, Tracey A., *Counsel for Respondent*
- Hoyt, Joshua Timothy, *Counsel for Petitioner Citadel Securities LLC*
- Intercontinental Exchange, Inc. (NYSE: ICE), *Indirect Parent of Intervenor NYSE American, LLC; NYSE Arca, Inc.; NYSE Chicago, Inc.; NYSE National, Inc.; and New York Stock Exchange LLC*
- International Securities Exchange Holdings, Inc., *Sole LLC Member of Intervenor Nasdaq GEMX LLC, Nasdaq ISE LLC, and Nasdaq MRX LLC*

**No. 23-13396, American Securities Association v. U.S. Securities
and Exchange Commission**

- Investment Company Institute, *Amicus Curiae*
- Investor AB (Nasdaq Stockholm: INVEB), *Owner of More than 10% of Shares of Intervenor Nasdaq, Inc.*
- Investors' Exchange, LLC, *Member and Participant of Intervenor Consolidated Audit Trail, LLC*
- Jenner & Block, LLP, *Counsel for Intervenor Consolidated Audit Trail, LLC*
- Jones Day, *Counsel for Petitioner Citadel Securities LLC*
- Kastenbergh, Stephen J., *Counsel for Intervenors NASDAQ BX, Inc.; NASDAQ GEMX, LLC; NASDAQ ISE, LLC; NASDAQ MRX, LLC; NASDAQ PHLX, LLC; and NASDAQ Stock Market, LLC*
- Katsiff, Timothy D., *Counsel for Intervenors NASDAQ BX, Inc.; NASDAQ GEMX, LLC; NASDAQ ISE, LLC; NASDAQ MRX, LLC; NASDAQ PHLX, LLC; and NASDAQ Stock Market, LLC*
- Kennedy, Jordan, *Counsel for Respondent*
- Kothari, S.P., *Amicus Curiae*
- Lantieri III, Paul, *Counsel for Intervenors NASDAQ BX, Inc.; NASDAQ GEMX, LLC; NASDAQ ISE, LLC; NASDAQ MRX, LLC; NASDAQ PHLX, LLC; and NASDAQ Stock Market, LLC*
- Long-Term Stock Exchange, Inc., *Member and Participant of Intervenor Consolidated Audit Trail, LLC*

**No. 23-13396, American Securities Association v. U.S. Securities
and Exchange Commission**

- Lucas, Brinton, *Counsel for Petitioner Citadel Securities LLC*
- MacLean, Matthew J., Pillsbury Winthrop Shaw Pittman LLP, *Counsel for Intervenors NYSE American, LLC; NYSE Arca, Inc.; NYSE Chicago, Inc.; NYSE National, Inc.; and New York Stock Exchange LLC*
- Marks, William T., *Counsel for Amici Curiae Securities Industry and Financial Markets Association and Virtu Financial, Inc.*
- Matro, Daniel, *Counsel for Respondent*
- Managed Funds Association, *Amicus Curiae*
- MEMX LLC, *Member and Participant of Intervenor Consolidated Audit Trail, LLC*
- Miami International Securities Exchange LLC, *Member and Participant of Intervenor Consolidated Audit Trail, LLC*
- MIAX Emerald, LLC, *Member and Participant of Intervenor Consolidated Audit Trail, LLC*
- MIAX PEARL, LLC, *Member and Participant of Intervenor Consolidated Audit Trail, LLC*
- Modern Markets Initiative, Inc., *Sponsor Disclosed by Amici Curiae James Overdahl and S.P. Kothari*
- Molzberger, Michael K., *Counsel for Intervenor Cboe BYX Exchange, Inc.; Cboe BZX Exchange, Inc.; Cboe C2 Exchange, Inc.; Cboe EDGA Exchange, Inc.; Cboe EDGX Exchange, Inc.; and Cboe Exchange, Inc.*

**No. 23-13396, American Securities Association v. U.S. Securities
and Exchange Commission**

- NASDAQ BX, Inc., *Intervenor*
- NASDAQ GEMX, LLC, *Intervenor*
- Nasdaq, Inc. (Nasdaq: NDAQ), *Sole Owner of LLC Interest in Nasdaq Stock Market, LLC and Nasdaq PHLX LLC and Parent Company of Nasdaq BX, Inc.*
- NASDAQ ISE, LLC, *Intervenor*
- NASDAQ MRX, LLC, *Intervenor*
- NASDAQ PHLX, LLC, *Intervenor*
- NASDAQ Stock Market, LLC, *Intervenor*
- New York Stock Exchange LLC, *Intervenor*
- NYSE American, LLC, *Intervenor*
- NYSE Arca, Inc., *Intervenor*
- NYSE Chicago, Inc., *Intervenor*
- NYSE National, Inc., *Intervenor*
- Overdahl, James, *Amicus Curiae*
- Paul, Weiss, Rifkind, Wharton & Garrison, LLP, *Counsel for Amici Curiae Securities Industry and Financial Markets Association, Alternative Investment Management Association, Committee on Capital Markets Regulation, Investment Company Institute, Managed Funds Association, and Virtu Financial, Inc.*
- Phillips, David, *Counsel for Petitioner Citadel Securities LLC*

**No. 23-13396, American Securities Association v. U.S. Securities
and Exchange Commission**

- Pillsbury Winthrop Shaw Pittman, LLP, *Counsel for Intervenors NYSE American, LLC; NYSE Arca, Inc.; NYSE Chicago, Inc.; NYSE National, Inc.; and New York Stock Exchange LLC*
- Rabbitt, Brian Charles, *Counsel for Petitioner Citadel Securities LLC*
- Reisner, Lorin L., *Counsel for Amici Curiae Securities Industry and Financial Markets Association, Alternative Investment Management Association, Committee on Capital Markets Regulation, Investment Company Institute, Managed Funds Association, and Virtu Financial, Inc.*
- Roth, Yaakov M., *Counsel for Petitioner Citadel Securities LLC*
- Securities Industry and Financial Markets Association, *Amicus Curiae*
- Shanmugam, Kannon K., *Counsel for Amici Curiae Securities Industry and Financial Markets Association, Alternative Investment Management Association, Committee on Capital Markets Regulation, Investment Company Institute, Managed Funds Association, and Virtu Financial, Inc.*
- Stern, Eric E., *Counsel for Amici Curiae Securities Industry and Financial Markets Association and Virtu Financial, Inc.*
- The Nasdaq Stock Market LLC, *Intervenor and Member and Participant of Intervenor Consolidated Audit Trail, LLC*

***No. 23-13396, American Securities Association v. U.S. Securities
and Exchange Commission***

- The Vanguard Group, Inc., *Owner of More than 10% of Common Stock of Cboe Global Markets, Inc. as of June 30, 2023*
- Thoma Bravo UGP, LLC, *Owner of More than 10% of Shares of Nasdaq, Inc.*
- U.S. Securities and Exchange Commission, *Respondent*
- Unikowsky, Adam Granich, *Counsel for Intervenor Consolidated Audit Trail, LLC*
- Virtu Financial, Inc. (VIRT), *Amicus Curiae*

Amici curiae Securities Industry and Financial Markets Association has no parent corporation, and no publicly held company owns 10% or more of its stock. Amicus curiae Virtu Financial, Inc., is a publicly traded corporation whose common stock is traded on the Nasdaq Stock Market (VIRT). Virtu has no parent corporation, and no publicly held company owns 10% or more of its stock.

/s/ Kannon K. Shanmugam
KANNON K. SHANMUGAM

Pursuant to Federal Rule of Appellate Procedure 27, amici curiae Securities Industry and Financial Markets Association and Virtu Financial, Inc., respectfully move for leave to file a brief in support of petitioners' opposed time-sensitive motion for stay and injunctive relief.

1. The Securities Industry and Financial Markets Association (SIFMA) is the leading trade association for broker-dealers, investment banks, and asset managers operating in the United States and global capital markets. On behalf of industry members and their one million employees, SIFMA advocates on legislation, regulation, and business policy affecting retail and institutional investors, equity and fixed-income markets, and related products and services.

Virtu Financial, Inc., is a leading financial firm that leverages cutting-edge technology to deliver liquidity to the global markets and innovative, transparent trading solutions to its clients. Virtu operates as a market maker across numerous exchanges in the United States and is a member of all United States registered stock exchanges.

2. Amici have a direct interest in this litigation because the amendments to the National Market System Plan for the Consolidated Audit Trail (CAT) will subject amici or their members to significant, escalating, and largely uncontrolled fees. On February 15, 2024, amici filed a brief in support of petitioners' position on the merits.

3. Beginning in August 2024, the self-regulatory organizations submitted rule filings that ostensibly would require CAT fee payments from broker-dealers even before this Court has the opportunity to rule on the lawfulness of the order of the Security and Exchange Commission (SEC) that purports to authorize such rule filings.

4. On September 13, 2024, petitioners filed an opposed time-sensitive motion to stay the SEC's order and enjoin the self-regulatory organizations from collecting CAT fees until the Court rules on the merits of petitioners' challenge to the order.

5. Amici respectfully request leave to file a brief in support of petitioners' motion. Amici have an interest in the disposition of the pending motion because, absent the relief requested by petitioners, amici or their members may suffer irreparable harm. Under the rule filings that petitioners seek to stay or enjoin, broker-dealers must transfer millions of dollars to the self-regulatory organizations before this Court's ruling. As amici explain in their brief, those funds are likely unrecoverable even if petitioners' challenge to the SEC's order is successful. Amici's proposed brief is appended to this motion.

6. Counsel for amici have contacted counsel for all parties concerning their position on this motion. Respondent Securities and Exchange Commission and intervenor Consolidated Audit Trail, LLC, take no position on the motion. Petitioner American Securities Association and intervenors The

Nasdaq Stock Market LLC; Nasdaq BX, Inc.; Nasdaq GEMX, LLC; Nasdaq ISE, LLC; Nasdaq MRX, LLC; Nasdaq PHLX LLC; Cboe BYX Exchange, Inc.; Cboe BZX Exchange, Inc.; Cboe C2 Exchange, Inc.; Cboe EDGA Exchange, Inc.; Cboe EDGX Exchange, Inc.; and Cboe Exchange, Inc. do not oppose the motion. Counsel for petitioner Citadel Securities LLC and the remaining intervenors did not provide a response.

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For the foregoing reasons, amici's motion to file a brief in support of petitioners' opposed time-sensitive motion for stay and injunctive relief should be granted.

Respectfully submitted,

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SEPTEMBER 20, 2024

**CERTIFICATE OF COMPLIANCE
WITH TYPEFACE AND WORD-COUNT LIMITATIONS**

I, Kannon K. Shanmugam, a member of the Bar of this Court and counsel for amici curiae Securities Industry and Financial Markets Association and Virtu Financial, Inc., hereby certify, pursuant to Federal Rule of Appellate Procedure 27(d)(1)(E) and (d)(2) and Local Rule 27(a)(1), that the attached Motion for Leave to File Brief of Amici Curiae Securities Industry and Financial Markets Association and Virtu Financial, Inc., in Support of Petitioners' Opposed Time-Sensitive Motion for Stay and Injunctive Relief is proportionately spaced, has a typeface of 14 points or more, and contains 522 words.

SEPTEMBER 20, 2024

/s/ Kannon K. Shanmugam

Kannon K. Shanmugam